

		To be sure, the Court is sympathetic to Defendant’s concerns regarding his deposition, as well as his health conditions. With that said, the Court finds Defendant’s recent medical records to be the most persuasive and relevant. These records reflect Defendant’s treatment in January and February of this year (contrasted with Plaintiff’s evidence that is all dated prior.) In these medical records, dated 2/14/25, 2/10/25, 1/31/25, 1/29/25, 1/27/25, and 1/23/25, Defendant is described as “alert,” “cooperative,” “fully oriented,” “not anxious or depressed,” and “feel[ing] better.” (Supp. Kleindienst Ex. N at 5, 10, 17, 28-29, 40, 51, 61-62, 75, 96.) The records repeatedly state Defendant is “negative for dizziness, syncope, weakness, lightheadedness and headaches” and “negative for confusion, hallucinations and suicidal ideas.” (<i>Id.</i> at 4, 16, 27, 39, 50, 60.) In sum, the Court finds that Defendants fail to establish that Mr. Khatami’s health is such that he is unable to provide accurate testimony or that a deposition would be so dangerous to his health as to outweigh Plaintiff’s right to take his deposition. The parties are ordered to meet and confer on the parameters of Defendant’s deposition in order to best accommodate his conditions and minimize any potential stress. The Plaintiff and Defendant are ordered to meet and confer regarding Defendant’s chosen place for the deposition as well as the length and timing (e.g., if morning or afternoon is better, and if there should be a maximum number of hours per day). Defendant is ordered to appear for his deposition on a date, or dates, agreeable to both sides within 45 days of this ruling. Plaintiff shall give notice.
3	Bazil vs. California Automobile Insurance Company 2024-01403685	1. Motion to Strike Portions Of Complaint The motion by Defendant California Automobile Insurance Company (“Defendant”) for an order striking the punitive damages allegations and prayer for punitive damages from the First Amended Complaint (“FAC”) filed by Plaintiff Roderick Bazil (“Plaintiff”) is granted with 15 days leave to amend. Pursuant to Code of Civil Procedure section 436, the Court may: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff may recover exemplary damages in an action for the breach of an obligation not arising from contract if Plaintiff proves by clear and convincing evidence that Defendant is “guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)

Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) However, “it has long been recognized that ‘(t)he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.’” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Id.*)

“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’” (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164 [citing *Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167].)

		An employer shall not be liable for punitive damages “based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) Plaintiff concedes Plaintiff did not allege sufficient facts to support a claim for punitive damages against a corporate defendant. Plaintiff did not allege sufficient facts to show malice, oppression, or fraud. (<i>See, Nickerson v. Stonebridge Life Ins. Co.</i> (2016) 5 Cal.App.5th 1, 21-22.) Accordingly, the motion to strike the punitive damages allegations and prayer for punitive damages is granted with 15 days leave to amend. Defendant shall give notice. 2. Case Management Conference Continued to 12-82025 at 9:00 a.m.
4	C. vs. DOE 1 2022-01274942	Motion for Summary Judgment and/or Adjudication Continued to 11/24/2025 per stipulation
5	Capuleno vs. El Pollo Loco, Inc. 2023-01324749	Motion for Summary Judgment and/or Adjudication Cross-Defendant Adriano Design’s (“Adriano Design”) motion for summary judgment or, alternatively, summary adjudication, against Cross-Complainants, El Pollo Loco, Inc. and El Pollo Loco Holdings, Inc. (collectively, “El Pollo Loco”), is denied. <u>Procedural Issues</u> Adriano Design’s request for judicial notice of the complaint is granted. El Pollo Loco’s objections, nos. 1 and 2, to Adriano Design’s evidence, are overruled. Adriano Design’s request for the court to refuse to consider the opposition is declined, as is El Pollo Loco’s request for the court to treat the motion as one solely for summary judgment.